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MAHATMA GANDHI UNIVERSITY, KOTTAYAM

MGU-UGP (HONOURS) REGULAR EXAMINATION March 2026 - Fourth SEMESTER

Discipline Specific Core Course (DSC) - MG4DSCJMC200 - MEDIA LAWSAND ETHICS

Duration: 2 hours **Maximum Marks : 70**

PART A — Multiple Choice Questions

1b) Parliamentary

2b) Investigative journalism

3a) Privacy

4b) Personal interests influence professional decisions

5c) Reasonable

6b) Scandalizing court

7b) Cracking

8c) Retired Supreme Court Judge

9c) Sedition

10c) Indecent Representation of Women (Prohibition) Act

PART B — Short Answer Questions *(3 Marks)*

11. Objectives of Justice in the Preamble

- The Preamble to the Indian Constitution commits to securing social, economic, and political justice for all citizens
- Social justice ensures equal treatment regardless of caste, religion, gender, or class; economic justice aims at equitable distribution of resources and opportunities
- Political justice guarantees equal political rights and participation, ensuring that every citizen has an equal voice in democratic governance

12. Importance of Legislative Privileges in a Democracy

- Legislative privileges protect members of Parliament and State Legislatures from legal proceedings for anything said or done in the course of legislative proceedings, ensuring free and fearless debate
- They safeguard the independence of the legislature from interference by the executive or judiciary, preserving the separation of powers
- For media, legislative privilege means reports of parliamentary proceedings published in good faith are protected from defamation suits, enabling transparent public reporting of governance

13. Article 19(1)(a) and Restrictions on Reporting Criminal Investigations

- Article 19(1)(a) guarantees freedom of speech and expression, including press freedom, but Article 19(2) permits reasonable restrictions in the interests of public order, decency, and justice
- Reporting on ongoing criminal investigations can prejudice fair trials, influence witnesses, and compromise the accused's right to a fair hearing — justifying restrictions on media coverage

- The balance requires that restrictions be proportionate, legally sanctioned, and not used to suppress legitimate public interest journalism under the guise of protecting investigations

14. Three Major Recommendations of the First Press Commission

- Establishment of a Press Council of India to maintain press freedom while ensuring journalistic accountability and ethical standards
- Measures to prevent monopolistic ownership of newspapers and ensure diversity of ownership in the press
- Improvement of working conditions, wages, and service security for working journalists through legislative protections

15. Three Directive Principles of State Policy

- The state shall endeavour to secure a social order in which justice — social, economic, and political — informs all institutions of national life (Article 38)
- The state shall direct its policy towards securing adequate means of livelihood for all citizens and equal pay for equal work (Article 39)
- The state shall provide free and compulsory education for all children until the age of fourteen years (Art. 45)

16. Powers and Functions of the Supreme Court of India

- The Supreme Court exercises original jurisdiction in disputes between states or between states and the Union, and appellate jurisdiction over High Court decisions in civil, criminal, and constitutional matters
- It is the final interpreter of the Constitution and has the power of judicial review to strike down laws inconsistent with constitutional provisions
- The Supreme Court also has advisory jurisdiction under Article 143, allowing the President to seek its opinion on questions of law or fact of public importance

17. Spying

- Spying, or espionage, refers to the covert gathering of confidential, classified, or sensitive information — typically belonging to a government, organisation, or individual — without authorisation and often for the benefit of a foreign power or rival entity
- In the context of media law, spying becomes relevant when journalists access classified state information, raising questions about the boundary between investigative journalism and unlawful interception
- In India, the Official Secrets Act, 1923 criminalises the collection and disclosure of information prejudicial to national security and is often invoked in cases involving journalists and whistleblowers

18. Censorship in Media

- Censorship is the suppression, restriction, or regulation of content in media — print, broadcast, film, or digital — by a government authority, institution, or other controlling body before or after publication
- Pre-censorship (prior restraint) prevents publication of content deemed harmful, while post-publication censorship involves removal or ban of already published material
- In India, the Constitution permits reasonable censorship of films (through the Central Board of Film Certification) and wartime media restrictions, but prior restraint on the press is generally not permissible under constitutional jurisprudence

19. Scope of Freedom of Speech and Expression

- Article 19(1)(a) of the Indian Constitution guarantees all citizens the right to freedom of speech and expression, which includes the right to express opinions through any medium — spoken word, writing, print, pictures, or electronic media

- The Supreme Court has interpreted this right to include press freedom, the right to information, the right to broadcast, and the right to silence
- The scope is not absolute — Article 19(2) permits the state to impose reasonable restrictions on grounds of sovereignty, security of the state, public order, decency, morality, contempt of court, defamation, and incitement to offence

20. Shreya Singhal v. Union of India and Media Freedom

- In this landmark 2015 judgment, the Supreme Court struck down Section 66A of the Information Technology Act, which penalised online speech found to be "offensive" or "menacing" — terms too vague to constitute reasonable restrictions under Article 19(2)
- The judgment significantly expanded digital media freedom by holding that the state cannot curtail online expression arbitrarily and that restrictions must meet the specific grounds listed in Article 19(2)
- It established that the chilling effect of vague internet speech laws on legitimate journalism, activism, and public discourse is constitutionally impermissible, making it a foundational precedent for digital rights.

21. Consequences of Irresponsible Journalism

- Irresponsible journalism can cause irreparable reputational harm to individuals through inaccurate, sensationalised, or defamatory reporting, exposing media organisations to legal liability
- It erodes public trust in the media institution as a whole, undermining the press's democratic role as a credible Fourth Estate
- In extreme cases, irresponsible reporting — particularly during communal tensions or crises — can incite public disorder, violence, and panic, making it a matter of both ethical and legal consequence

22. Role of the Information Technology Act in Regulating Digital Media

- The Information Technology Act, 2000 (amended 2008) provides the primary legislative framework for regulating content on digital platforms, covering cybercrimes, data protection, and intermediary liability
- Section 79 grants safe harbour protection to intermediaries who act as passive conduits, provided they comply with government takedown notices and due diligence requirements
- The IT (Intermediary Guidelines and Digital Media Ethics Code) Rules, 2021 further regulate online news portals and OTT platforms, requiring grievance redressal mechanisms and content classification — significantly expanding state oversight of digital journalism

PART C — Essay Questions *(15 Marks)*

23. Sources, Functions, and Importance of Law in Maintaining Social Order

- Sources of law include legislation (statutes enacted by Parliament and State Legislatures), judicial precedents (case law established by courts), customary law, constitutional provisions, and personal laws governing specific communities
- Regulatory function — law defines acceptable conduct, establishes rights and duties, and provides mechanisms for resolving disputes between individuals and the state
- Protective function — law safeguards fundamental rights, protects the vulnerable from exploitation, and ensures equality before the law regardless of social position
- Social change function — law acts as an instrument of social reform, as seen in legislation abolishing untouchability, ensuring women's rights, and regulating child labour
- Importance for media — a robust legal framework protects press freedom while holding journalists accountable, balancing the democratic necessity of free expression with the equally important need for social order and individual dignity

24. Freedom of Press vs. Defamation, Sedition, and National Security

- Defamation — Section 499 and 500 of the IPC criminalise defamation, creating tension with press freedom; the Subramanian Swamy v. Union of India (2016) case upheld criminal defamation's constitutionality, though press freedom advocates argue it has a chilling effect on investigative journalism
- Sedition — Section 124A IPC punishes speech that excites disaffection against the government; historically misused against journalists and activists, the Supreme Court in Kedar Nath Singh v. State of Bihar (1962) limited its scope to speech inciting actual violence, yet its misuse persists in cases like Vinod Dua v. Union of India (2021)
- National security — the Official Secrets Act and UAPA create significant barriers to reporting on security matters, often conflicting with the public's right to know about state conduct
- The tension is fundamentally about where the line falls between speech that serves democratic accountability and speech that genuinely threatens individuals or the state
- Courts have consistently held that restrictions must be narrowly tailored, proportionate, and not used as instruments of political suppression — a standard that remains contested in practice

25. Civil Law vs. Criminal Law — Meaning, Nature, and Differences

- Civil law governs disputes between private parties — individuals, organisations — concerning rights, property, contracts, and torts; the objective is to provide remedy (compensation or injunction) to the aggrieved party rather than to punish
- Criminal law deals with offences against society at large; the state prosecutes the accused and the objective is punishment — imprisonment, fine, or both — to deter future offences and maintain public order
- Standard of proof differs fundamentally: civil cases require proof on the balance of probabilities, while criminal cases demand proof beyond reasonable doubt — a significantly higher threshold
- Parties and procedure: civil suits are filed by the aggrieved party (plaintiff vs. defendant); criminal cases are prosecuted by the state (prosecution vs. accused) through the police and public prosecutor
- Media relevance: defamation can be both civil (suit for damages) and criminal (prosecution under IPC); contempt of court, copyright infringement, and privacy violations may attract civil liability, while sedition, obscenity, and cybercrimes attract criminal prosecution

26. Objectives of Copyright Law in the Digital Media Age

- Protection of creative rights — copyright law grants authors, journalists, photographers, and content creators exclusive rights over their original works, preventing unauthorised reproduction, distribution, and commercial exploitation
- Incentivising creation — by guaranteeing economic returns through licensing, royalties, and moral rights, copyright law encourages continued investment in original content creation in digital environments
- Addressing digital challenges — the digital age has made copying, sharing, and remixing content instantaneous and global, requiring copyright law to evolve through the Digital Millennium Copyright Act (US) and India's IT Act amendments to address online piracy, fair use in digital contexts, and platform liability
- Balancing public interest — fair use/fair dealing provisions allow limited use of copyrighted material for education, research, criticism, and news reporting — preserving the press's ability to quote and analyse content without infringing copyright

- Platform accountability — in the digital age, copyright law increasingly focuses on the responsibility of platforms (YouTube, social media) to prevent infringement through content ID systems and takedown mechanisms, raising critical questions about the balance between creator rights, platform freedom, and public access to information